IN THE NATIONAL INDUSTRIAL COURT
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO: NICN/LA/435/2020

BETWEEN
MR. ABEL ADAGBA ---------- CLAIMANT/APPLICANT

AND
1. IPBC NIG. LTD
2. SIR GOODIE IBRU ---------- DEFENDANTS/RESPONDENTS

COUNTER AFFIDAVIT

I, Samsudeen Adebayo, male, Christian, employee and Nigerian citizen of 30, Mobolaji Bank Anthony Way, Ikeja, Lagos do hereby make oath and state as follows:

1. That I am a worker in the law firm of G. M. Ibru & Co., counsel to the 1st and 2nd Defendants in this suit.

2. That I have the consent and authority of both my employer and of the 1st and 2nd Defendants to depose to this affidavit.

3. That I have seen and read the Claimant's Motion for Extension of time dated and filed 19th 0f July 2023 extending the time within which to file their Counter affidavit to 1st and 2nd Defendant notice for Preliminary Objection.

4. That in response to the Claimant's Affidavit in Support of Motion for Extension of time dated and filed 19th of July 2023 extending the time within which to file their Counter affidavit to 1st and 2nd Defendants Notice for Preliminary Objection, the Claimant falsely stated in paragraph 3(d) of Claimants Affidavit referred to above that they have accordingly paid the duly computed penalty fee for late filing of the aforesaid process and the Defendant thereby puts the Claimant to the strictest proof.

5. That in response to the said Affidavit in Support, the Defendant states as follows:
    a. That the filing of the Claimant's counter-affidavit and written addresses in opposition to the 1st and 2nd Defendants Notice for Preliminary Objection, started running and/or elapsed and various amount of money were due and payable by the claimant as penalties for default in respect of the filing of the claimant's counter-affidavits and written address in opposition to the 1st and 2nd defendants' Notice for Preliminary Objection.
    b. That there is no receipt of payment of the full amount as appropriate penalties in default as stated by the Claimant in paragraph 3(d) of his affidavit in support of the motion for extension of time dated 19th July 2023.

c. That the Claimant Counsel inadvertently deposed in paragraph 3(d) of his affidavit in support of the motion for extension of time dated 19th July 2023, stating that they have accordingly paid the duly computed penalty fee for late filing of the aforesaid process.
d. That there is no where on the face of the said Claimant's Motion dated 19th July 2023 nor in the affidavit in support was the correct and appropriate penalties stated as paid by the Claimant.

6. I urge this Honourable Court to strike out the said paragraph 3(d) of Claimant's affidavit in support of the motion for extension of time dated 19th July 2023.

7. I urge the Court to discountenance the Claimant's Motion for extension of time dated 19th July 2023 on grounds of being incompetent, does not cure the defects in the process sought to be cured and therefore an abuse of court process.

8. That it is in the interest of justice to grant this Counter Affidavit.

9. That I make this affidavit bona fide believing its contents to be true and correct in accordance with the Oaths Law of Lagos State

……

D E P O N E N T

SWORN to at the National Industrial Court, Registry, Ikoyi, Lagos

This …….. day of……..2023.

BEFORE ME

COMMISSIONER FOR OATHS

IN THE NATIONAL INDUSTRIAL COURT
IN THE LAGOS JUDICIAL DIVISION
HOLDEN AT LAGOS

SUIT NO: NICN/LA/435/2020

BETWEEN
MR. ABEL ADAGBA ---------- CLAIMANT/APPLICANT

AND
1. IPBC NIG. LTD
2. SIR GOODIE IBRU ---------- DEFENDANTS/RESPONDENTS

WRITTEN ADDRESS IN SUPPORT OF COUNTER AFFIDAVIT

1. **INTRODUCTION**
   - **a.** This is a Counter Affidavit dated the …….. day of …….. 2023 brought pursuant to Order 17 Rule 1 of the National Industrial Court (Civil Procedure) Rules 2017, Section 36(6) of the Constitution of the Federal Republic of Nigeria, 1999 as Amended and under the Inherent Jurisdiction of this Honourable Court. The Defendants/Respondents are by this application praying this Honourable Court for the following:
     - **i.** **AN ORDER** striking out paragraph 3(d) of Claimant's affidavit in support of the motion for extension of time dated 19th July 2023.
     - **ii.** **AN ORDER** dismissing the Claimant's Motion for Extension of Time dated and filed 19th of July 2023 on the grounds of being incompetent, does not cure the defects in the process sought to be cured and therefore an abuse of court process.
     - **iii.** And for such order or further orders as this Honourable Court may deem fit to make in the circumstances.
   - **b.** The Counter Affidavit is supported by a Nine-paragraph Affidavit deposed to by Samsudeen Adebayo, a worker in the law firm of G. M. IBRU & Co, counsel to the Defendants/Respondents. We shall rely on all the paragraphs of the Affidavit.

2. **ISSUE FOR DETERMINATION**
   - **a.** My Lord, we submit that at least one issue arises for determination by this court:
     Whether the Honourable Court can rightly dismiss the Claimant's Motion for Extension of Time dated and filed 19th of July 2023**.**

3. **ARGUMENTS**

My Lord, we submit that a proper treatment of the above issue will be best canvassed thus:

a. ORDER 57 RULE 5(5) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017 provides that:

> *(5) Any process which is to be filed at the Registry of the Court for which the appropriate fees or penalty is not paid after assessment in line with the Rules of the Court shall not be accepted for filing.*

Provided that where accepted for filing by default on the part of the officer of the Court in the Registry, such a process shall become incompetent and shall not be allowed to be used for the purpose for which it is intended until the appropriate fee is paid.

b. ORDER 57 RULE 6(3) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017 provides:

(3) Any process filed out of time which violates sub-rules (1) and (2) of this Rule is incompetent and may be so treated by the Court.

c. In light of the foregoing, we would like to draw My Lord's attention to paragraph 5(b) of this Counter-Affidavit, where we stated that:

That there is no receipt of payment of the full amount as appropriate penalties in default as stated by the Claimant in paragraph 3(d) of his affidavit in support of the motion for extension of time dated 19th July 2023.

d. We humbly submit that the law is settled in the rules of this Honourable Court as already cited that in the absence of such compliance, such motion will be treated by the court as incompetent and we urge this Honourable Court to so hold.

e. Assuming but not conceding that this error has emanated from counsel and not the party, counsel shall pay the fee. See ORDER 57 RULE 5(7) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017, thus:

(7) Where in any form or manner the default, neglect or failure to file a process or comply with the Directives or Order of the court is due to the fault of counsel or that of the counsel's agent or servant, the penalty for the neglect or failure to comply with directive or order of the Court shall be paid by the counsel and not by the client. Failure of Counsel to pay such a penalty may be regarded as disobedience to a court order and may be treated as the Court may direct.

f. ORDER 57 RULE 6(1) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017 provides that the correct and appropriate penalties shall be stated and paid by the defaulting party.

g. My Lord, there is no where on the face of the said Claimant's Motion dated 19th July 2023 nor in the affidavit in support was the correct and appropriate penalties stated as paid by the Claimant. We humbly refer My Lord to paragraph 5(d) of the Counter-Affidavit to this Written Address where same was deposed to.

h. The law is clear on abuse of court process. The Supreme Court in the case of TOMTEC NIGERIA LTD v. FHA(2009) LPELR-3256(SC), held that where a court process is premised on frivolity or recklessness," there could be said to be an abuse of court process.

i. Claimants have evidently not complied in fact or law required to ventilate credence to his motion for extension of time having further not complied with ORDER 57 RULE 5(1)and ORDER 57 RULE 5(2) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017 which provides that:

(1)The Registrar or any other officer in the Registry dealing with processes shall endorse on the original process the date and time of submission and whether the appropriate fee or penalty has been duly paid or not

(2) The amount so paid or not paid shall be clearly stated on the original process.

j. It is on these grounds My Lord that we pray this Honourable court to make:

- **i.** an order striking out paragraph 3(d) of Claimant's affidavit in support of the motion for extension of time dated 19th July 2023.
- **ii.** an order dismissing the Claimant's Motion for Extension of Time dated and filed 19th of July 2023 on the grounds of being incompetent, does not cure the defects in the process sought to be cured and therefore an abuse of court process.
- **iii.** And for such order or further orders as this Honourable Court may deem fit to make in the circumstances.

k. We submit further that to refuse the grant of the Claimant/Applicant's application will not work any injustice against the Claimant/Applicant's rather it may prejudice the Defendants/Respondents in this suit.

4.0 <u>CONCLUSION</u>

a. Respectfully My Lord, consequent upon the above arguments and stated authorities, we submit that the Court can rightly dismiss the Claimant/Applicant's Motion on Notice dated 16th February, 2023.

b. We move in terms of the motion paper. Much obliged!

<u>LIST OF AUTHORITIES</u>

1. ORDER 57 RULE 5(5) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017
2. ORDER 57 RULE 6(3) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017 provides:
3. ORDER 57 RULE 5(7) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017
4. ORDER 57 RULE 6(1) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017
5. TOMTEC NIGERIA LTD v. FHA(2009) LPELR-3256(SC)
6. ORDER 57 RULE 5(1) THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017
7. ORDER 57 RULE 5(2) OF THE NATIONAL INDUSTRIAL COURT OF NIGERIA RULES 2017

Dated this…….day of ……2023.

…….
A.AKPOJARO
O. E. OKU, ESQ.
D. O. FAYEMI, ESQ.
T.D. ADEWUNMI
UGOCHUKWU N. ONYINYECHI, ESQ.
G. M. IBRU & CO.
Defendant/Respondents' Counsel
Sheraton Lagos Hotel Annex
30, Mobolaji Bank Anthony Way
Ikeja, Lagos State
08050749920; 08107681808
lawfirmgmibru@yahoo.co.uk
oyiboku@nigeriabar.ng

FOR SERVICE ON

The Claimant/Applicant
C/O His Counsel
Olasup Ati-John, Esq.
Kelechi M. Onugha, Esq.
Precious C. Enoch, Esq
Sophia Osademe, Esq.
Claimant's Counsel
(Supo Ati-John & Co.)
Plot 16A, George Omonubi Street
Off Bosun Adekoya Street
Off Oniru New Market Road
Lekki Phase 1, Lagos
Info@atijohnlawyers.com
01-2910-655